

24STCV12378 24STCV12378

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BACKGROUND

This case is a personal injury matter. Plaintiff Ovidio Ismael Avilies alleges that he was injured in a motor vehicle accident caused by Defendant Oscar Gonzalez.

On May 16, 2024, Plaintiff filed a complaint against Defendant. The complaint alleges only one cause of action for negligence.

On June 13, 2025, the Court issued a Minute Order granting Plaintiff's Motions to Compel Defendant's Discovery Responses. The Court ordered Defendant to serve verified responses within thirty days and to pay monetary sanctions in the amount of \$2,246.60.

On June 18, 2026, after Defendant failed to serve verified responses and pay monetary sanctions, the Court denied Plaintiff's motion for terminating sanctions but again ordered Defendant to provide verified responses to all outstanding discovery requests and ordered additional monetary sanctions.

On July 21, 2026, Plaintiff filed another Motion for Terminating Sanctions.

On August 20, 2026, Plaintiff filed a Notice of Non-opposition.

TENTATIVE RULING

Plaintiff's Motion for

Terminating Sanctions is GRANTED. Defendant's answer is struck. The Court will not order additional monetary sanctions.

LEGAL STANDARD

Where a party misuses the discovery process, courts have discretion to impose terminating, issue, evidence, or monetary sanctions. (See Code Civ. Proc., § 2023.030, subds. (a)-(d).) Misuse of the discovery process includes failure to respond to an authorized method of discovery or disobeying a court order to provide discovery. (See Code Civ. Proc., § 2023.010, subds. (d), (g).) 2

When determining which sanctions to impose, the Court should "consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should 'attempt to tailor the sanction to the harm caused by the withheld discovery.'" (Doppes v. Bentley Motors, Inc., (2009) 174 Cal.App.4th 967, 992.) The Court must take an incremental approach to discovery sanctions, beginning with monetary sanctions and ending with the ultimate sanction of termination. (See *ibid.*) "If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse." (*Ibid.*)

Ultimate discovery

sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. (See *Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516.) "[A] penalty as severe as dismissal or default is not authorized where noncompliance with discovery is caused by an inability to comply rather than willfulness or bad faith." (*Brown v. Superior Court* (1986) 180 Cal.App.3d 701, 707.) Further, preventing parties from presenting their cases on the merits is a drastic measure; terminating sanctions should only be ordered when there has been previous noncompliance with a rule or order and it appears a less severe sanction would not be effective. (See *Link v. Cater* (1998) 60 Cal.App.4th 1315, 1326.) 2

Before any sanctions may be imposed the court must make an express finding that there has been a willful failure of the party to serve the required answers. (See *Fairfield v. Superior Court* (1966) 246 Cal.App.2d 113, 118.) Lack of diligence may be deemed willful where the party understood its obligation, had the ability to comply, and failed to comply. (See *Deyo v. Killbourne* (1978) 84 Cal.App.3d 771, 787.) The party who failed to comply with discovery obligations has the burden of showing that the failure was not willful. (See *id.* at p. 788.)

DISCUSSION

On June 13, 2025, over a year ago, the Court ordered Defendant to serve verified responses to discovery within thirty days and pay monetary sanctions. On June 18, 2026, the Court ordered Defendant to “provide verified responses to Plaintiff’s outstanding discovery requests within 30 days. Furthermore, Defendant is also ordered to pay an additional \$1,000 in monetary sanctions (on top of the \$2,246.60 previously order by the Court).” (June 18 Minute Order, p. 4.)

To date, Defendant has not provided verified responses to the outstanding discovery requests or paid any of the ordered monetary sanctions. (See Motion, p. 3:10-11.) Therefore, the Court finds that Defendant willfully failed to comply with the Court’s order. (See *Fairfield v. Superior Court* (1966) 246 Cal.App.2d 113, 118.) For this reason, the Court finds it reasonable to impose additional sanctions. (See *ibid.*)

This is now Defendant’s second time in failing to comply with the Court’s order and the non-compliance stretches back more than a year. And again, Defendant has not provided any justification for his noncompliance. Therefore, the leniency that was previously provided to Defendant is no longer justified. Furthermore, the imposition of additional monetary sanctions proved futile in compelling Defendant’s compliance. Therefore, harsher sanctions are warranted. For these reasons, the Court believes that striking Defendant’s answer warranted. (See *Link v. Cater* (1998) 60 Cal.App.4th 1315, 1326.) The Court has given Defendant multiple opportunities and many months to abide by the Court’s orders and Defendant has demonstrated a pattern of noncompliance.

CONCLUSION

For the foregoing reasons,
Plaintiff's Motion for Terminating Sanctions is GRANTED.

Accordingly, Defendant's
answer is struck. In light of that, the Court will not order additional
monetary sanctions.